

Mewa Lal Ram v. State of U.P.

Allahabad High Court · Division Bench · 3 May 2024 · 2024:AHC:80062-DB · Writ-C No. 14697 of 2024 · **Writ disposed; relegated to Supply Code 2005 statutory remedies**

HEADNOTE

A fresh connection refused for outstanding dues on an existing connection in the petitioner's father's name at the same premises raises a fact dispute. Article 226 interference is declined and the writ is disposed of with liberty to avail statutory remedies under the U.P. Electricity Supply Code, 2005.

FACTUAL SUMMARY

The petitioner claimed a right to a fresh electricity connection. The distribution licensee had declined that request because outstanding dues remained on an existing connection at the same premises, standing in the name of the petitioner's father. Invoking Article 226, he sought a writ directing grant of the new connection. Counsel for the petitioner and for the power distribution licensee were heard.

HOLDING-UNITS

INTERPLAY · UP-2005

statutory remedies; Article 226; disputed facts

HOLDING

Where a fresh connection is refused for outstanding dues of an existing connection in the petitioner's father's name at the same premises, a fact dispute is involved and Article 226 interference is declined. The writ is disposed of leaving the petitioner to statutory remedies under the U.P. Electricity Supply Code, 2005. ¶ 3-4

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER OUTSTANDING DUES OF THE FATHER'S EXISTING CONNECTION AT THE SAME PREMISES BAR A FRESH CONNECTION IN THE PETITIONER'S NAME

Merits left to statutory remedies under the Supply Code because a fact dispute was involved. ¶ 2-4